



CHAPTER 52

An Act to make provision for the incidence of the costs
of leases. [23rd July, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Notwithstanding any custom to the contrary, a party to a lease shall, unless the parties thereto agree otherwise in writing, be under no obligation to pay the whole or any part of any other party's solicitor's costs of the lease.

2. In this Act—

Interpretation.

- (a) "lease" includes an underlease and an agreement for a lease or underlease or for a tenancy or sub-tenancy;
- (b) "costs" includes fees, charges, disbursements (including stamp duty), expenses and remuneration.

3. This Act may be cited as the Costs of Leases Act, 1958.

Short Title.